



INDIAN POLITY



NATIONAL EMERGENCY

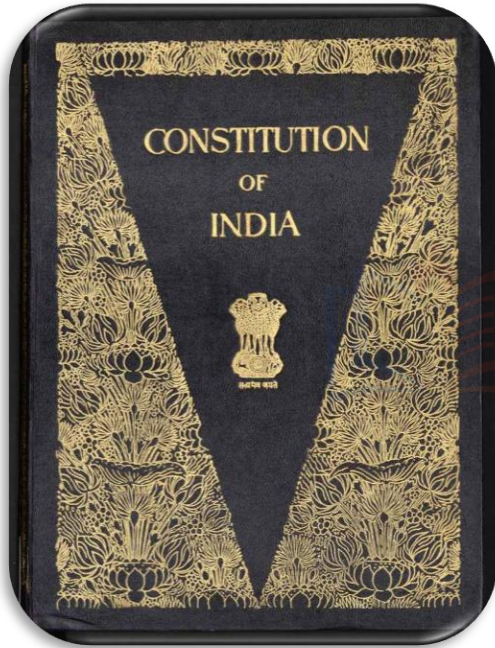


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MODULE – 114

EMERGENCY PROVISIONS



- The Emergency provisions are contained in Part XVIII of the Constitution, from Articles 352 to 360.
- These provisions enable the Central government to meet any abnormal situation effectively.
- The rationality behind the incorporation of these provisions in the Constitution is to safeguard the sovereignty, unity, integrity and security of the country, the democratic political system, and the Constitution.

EMERGENCY PROVISIONS

CONVERSION OF FEDERAL STRUCTURE INTO A UNITARY ONE



In this context, Dr B R Ambedkar observed in the Constituent Assembly that:

“All federal systems including American are placed in a tight mould of federalism. No matter what the circumstances, it cannot change its form and shape. It can never be unitary. On the other hand, the Constitution of India can be both unitary as well as federal according to the requirements of time and circumstances”.

EMERGENCY PROVISIONS

TYPES OF EMERGENCIES

The Constitution stipulates three types of emergencies:

1 An emergency due to war, external aggression or armed rebellion (Article 352). This is popularly known as '**National Emergency**'. However, the Constitution employs the expression 'proclamation of emergency' to denote an emergency of this type.

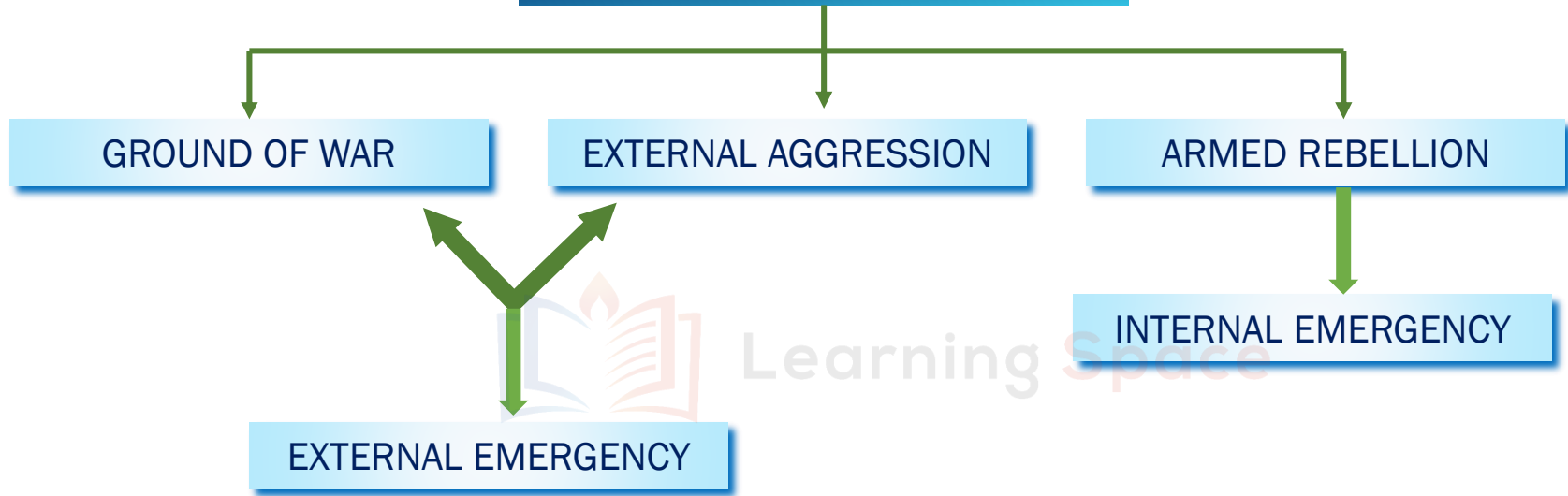
2 An Emergency due to the failure of the constitutional machinery in the states (Article 356). This is popularly known as '**President's Rule**'. It is also known by two other names—'State Emergency' or 'Constitutional Emergency'. However, the Constitution does not use the word 'emergency' for this situation.

3 **Financial Emergency** due to a threat to the financial stability or credit of India (Article 360).



EMERGENCY PROVISIONS

NATIONAL EMERGENCY



It may be noted that the president can declare a national emergency even before the actual occurrence of war or external aggression or armed rebellion, if he is satisfied that there is an imminent danger.

EMERGENCY PROVISIONS

NATIONAL EMERGENCY

THREE CONDITIONS FOR GROUNDS OF DECLARATION

GEOGRAPHICAL SPREAD OF EMERGENCY:

A proclamation of national emergency may be applicable to the entire country or only a part of it. The 42nd Amendment Act of 1976 enabled the president to limit the operation of a National Emergency to a specified part of India.

NO MORE "INTERNAL DISTURBANCE":

Originally, the Constitution mentioned 'internal disturbance' as the third ground for the proclamation of a National Emergency, but the expression was too vague and had a wider connotation. Hence, the 44th Amendment Act of 1978 substituted the words 'armed rebellion' for 'internal disturbance'.

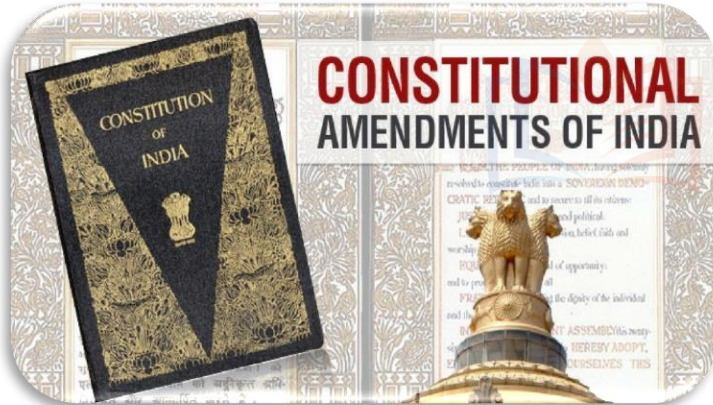
MORE THAN ONE CASE OF EMERGENCY:

The President can also issue different proclamations on grounds of war, external aggression, armed rebellion, or imminent danger thereof, whether or not there is a proclamation already issued by him and such proclamation is in operation. This provision was added by the 38th Amendment Act of 1975.

EMERGENCY PROVISIONS

NATIONAL EMERGENCY

CONDITION OF WRITTEN RECOMMENDATION FROM CABINET



- 1 The President, however, can proclaim a national emergency only after receiving a written recommendation from the cabinet.
- 2 This means that the emergency can be declared only on the concurrence of the cabinet and not merely on the advice of the prime minister.
- 3 The 44th Amendment Act of 1978 introduced this safeguard to eliminate any possibility of the prime minister alone taking a decision in this regard.

EMERGENCY PROVISIONS

NATIONAL EMERGENCY

CONDITION OF JUDICIAL REVIEW



- 1** The 38th Amendment Act of 1975 made the declaration of a National Emergency immune from the judicial review.
- 2** But, this provision was subsequently deleted by the 44th Amendment Act of 1978.
- 3** Further, in the Minerva Mills case, (1980), the Supreme Court held that the proclamation of a national emergency can be challenged in a court on the ground of malafide or that the declaration was based on wholly extraneous and irrelevant facts or is absurd or perverse.

EMERGENCY PROVISIONS

NATIONAL EMERGENCY

PARLIAMENTARY APPROVAL AND DURATION

Approval

Must be approved within **one month**. Originally, the period allowed for approval was 2 months but was reduced by 44th CAA.

Dissolution of Lok Sabha

If the proclamation of emergency is issued at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place during the period of one month without approving the proclamation, then the proclamation survives until **30 days from the first sitting of the Lok Sabha** after its reconstitution, provided the Rajya Sabha has in the meantime approved it.



EMERGENCY PROVISIONS

NATIONAL EMERGENCY

PARLIAMENTARY APPROVAL AND DURATION

Duration of the emergency

If approved by both the Houses of Parliament, the emergency continues for **six months**, and can be extended to an **indefinite period** with an approval of the Parliament for every six months.

Passed by

- Approval must be passed by either House of Parliament by a **special majority**, that is,
 - ✓ A majority of the total membership of that house, and
 - ✓ A majority of not less than two-thirds of the members of that house present and voting. This special majority provision was introduced by the 44th Amendment Act of 1978.
- Previously, such resolution could be passed by a simple majority of the Parliament.



EMERGENCY PROVISIONS

NATIONAL EMERGENCY

REVOCATION OF PROCLAMATION



1 A proclamation of emergency may be revoked by the President at any time by a subsequent proclamation. Such a proclamation does not require the parliamentary approval.

2 Further, the President must revoke a proclamation if the Lok Sabha passes a resolution disapproving its continuation. Again, this safeguard was introduced by the 44th Amendment Act of 1978.

EMERGENCY PROVISIONS

NATIONAL EMERGENCY

REVOCATION OF PROCLAMATION

3 The 44th Amendment Act of 1978 provided that, where **one-tenth of the total number of members of the Lok Sabha give a written notice to the Speaker** (or to the president if the House is not in session), a special sitting of the House should be held within 14 days for the purpose of considering a resolution disapproving the continuation of the proclamation.

RESOLUTION OF DISAPPROVAL	RESOLUTION OF CONTINUATION
Lok Sabha only	Both Houses of Parliament
Simple majority	Special majority



— PARLIAMENT OF INDIA —

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY



A proclamation of Emergency has drastic and wide-ranging effects on the political system. These consequences can be grouped into three categories:

- a) Effect on the Centre–state relations,
- b) Effect on the life of the Lok Sabha and State assembly, and
- c) Effect on the Fundamental Rights.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

1.EFFECT ON THE CENTRE–STATE RELATIONS

While a proclamation of Emergency is in force, the normal fabric of the Centre–state relations undergoes a basic change. This can be studied under three heads, namely, executive, legislative and financial.



1. EXECUTIVE

- In normal times, the Centre can give executive directions to a state only on certain specified matters.
- However, during a national emergency, the Centre becomes entitled to give executive directions to a state on 'any' matter.
- Thus, the state governments are brought under the complete control of the Centre, though they are not suspended.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

1.EFFECT ON THE CENTRE-STATE RELATIONS

2. LEGISLATIVE

- The **Parliament becomes empowered** to make laws on any subject mentioned in the **State List**.
- Although the legislative power of a state legislature is not suspended, it becomes **subject to the overriding power of the Parliament**.
- In brief, the Constitution becomes unitary rather than federal.
- The laws made by Parliament on the state subjects during a National Emergency become **inoperative six months after the emergency has ceased to operate**.

- The **President can issue ordinances** on the state subjects also, if the Parliament is not in session.
- Further, the Parliament can confer powers and impose duties upon the Centre or its officers and authorities in respect of matters outside the Union List, in order to carry out the laws made by it under its extended jurisdiction as a result of the proclamation of a National Emergency.
- As per the 42nd CAA, executive and legislative powers **extends to any other state where emergency is not in operation**.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

1.EFFECT ON THE CENTRE-STATE RELATIONS



— PARLIAMENT OF INDIA —

3. FINANCIAL

- The President can **modify the constitutional distribution of revenues** between the centre and the states.
- This means that the president can either reduce or cancel the transfer of finances from Centre to the states.
- Such modification **continues till the end of the financial year** in which the Emergency ceases to operate.
- Also, every such order of the President has to be laid before both the Houses of Parliament.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

2. EFFECT ON THE LIFE OF THE LOK SABHA AND STATE ASSEMBLY



- 1 The life of the Lok Sabha may be extended beyond its normal term (five years) by a law of Parliament for **one year at a time** (for any length of time).
- 2 However, this extension **cannot continue beyond a period of six months** after the emergency has ceased to operate.
- 3 Similarly, the Parliament may also extend the lifespan of the state legislative assemblies.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS

Articles 358 and 359 describe the effect of a National Emergency on the Fundamental Rights.

A. Suspension of Fundamental Rights under Article 19



1 According to Article 358, when a proclamation of national emergency is made, **the six Fundamental Rights under Article 19 are automatically suspended**. No separate order for their suspension is required.

2 In other words, the state can make any law or can take any executive action abridging or taking away the six Fundamental Rights guaranteed by Article 19.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS



- 3 Any such law or executive action **cannot be challenged** on the ground that they are inconsistent with the six Fundamental Rights guaranteed by Article 19.

- 4 When the National Emergency ceases to operate, **Article 19 automatically revives** and comes into force.

- 5 Any law made during Emergency, to the extent of inconsistency with Article 19, ceases to have effect.

- 6 However, no remedy lies for anything done during the Emergency even after the Emergency expires.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS

A. Suspension of Fundamental Rights under Article 19

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TWO RESTRICTIONS IMPOSED UPON THE SCOPE OF ARTICLE 358:

The 44th Amendment Act of 1978 restricted the scope of Article 358 in two ways.

- i. Firstly, the six Fundamental Rights under Article 19 can be suspended only when the National Emergency is declared on the **ground of war or external aggression and not on the ground of armed rebellion.**
- ii. Secondly, **only those laws which are related with the Emergency are protected** from being challenged and not other laws. Also, the executive action taken only under such a law is protected.

Article 19 of Indian Constution

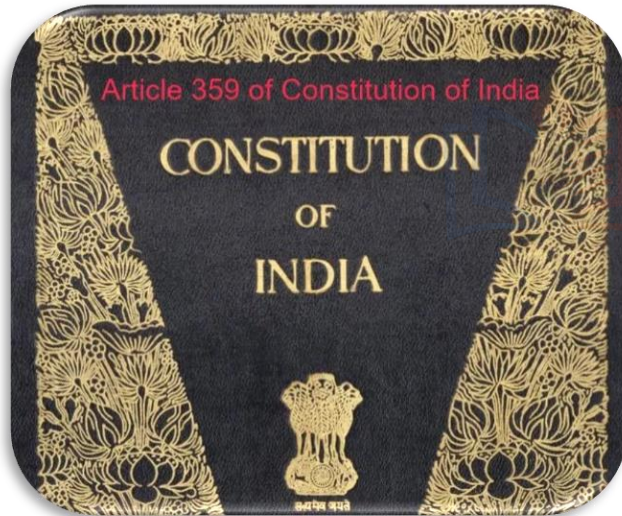
FREEDOM

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS

B. Suspension of other Fundamental Rights



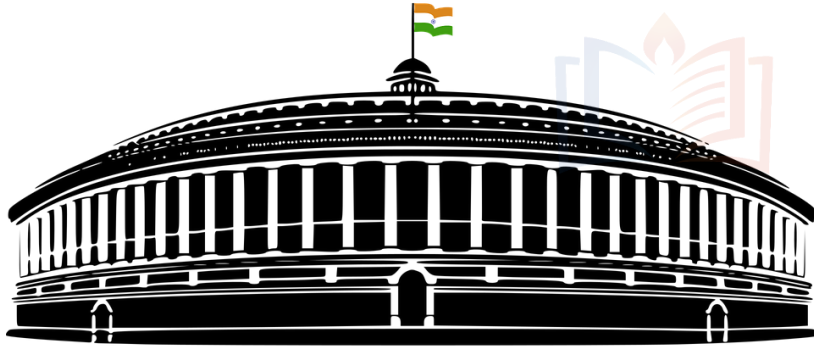
- 1 Article 359 authorises the **president** to suspend the right to move any court for the **enforcement of Fundamental Rights** during a National Emergency.
- 2 This means that under Article 359, the Fundamental Rights as such are not suspended, but only their enforcement.
- 3 The said rights are theoretically alive but the right to seek remedy is suspended.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS

B. Suspension of other Fundamental Rights



— PARLIAMENT OF INDIA —

4 The suspension of enforcement relates to **only those Fundamental Rights that are specified in the Presidential Order.**

5 Further, the suspension could be for the period during the operation of emergency or for a shorter period as mentioned in the order, and the suspension order may extend to the whole or any part of the country. It should be laid before each House of Parliament for approval.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS

B. Suspension of other Fundamental Rights

6 While a Presidential Order is in force, the State can make any law or can take any executive action abridging or taking away the specified Fundamental Rights.

7 Any such law or executive action cannot be challenged on the ground that they are inconsistent with the specified Fundamental Rights.

8 When the Order ceases to operate, any law so made, to the extent of inconsistency with the specified Fundamental Rights, ceases to have effect.

9 But no remedy lies for anything done during the operation of the order even after the order ceases to operate.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

3. EFFECT ON THE FUNDAMENTAL RIGHTS

B. Suspension of other Fundamental Rights

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TWO RESTRICTIONS IMPOSED UPON THE SCOPE OF ARTICLE 359:

The 44th Amendment Act of 1978 restricted the scope of Article 359 in two ways.

- i. Firstly, the President cannot suspend the right to move the Court for the enforcement of fundamental rights guaranteed by **Articles 20 to 21**. In other words, the right to protection in respect of conviction for offences (Article 20) and the right to life and personal liberty (Article 21) remain enforceable even during emergency.
- ii. Secondly, **only those laws which are related with the emergency** are protected from being challenged and not other laws and the executive action taken only under such a law, is protected.



EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

DISTINCTION BETWEEN ARTICLES 358 AND 359

S.NO	ARTICLE 358	ARTICLE 359
1	This is confined to suspension of fundamental rights under Article 19 only.	All those Fundamental Rights whose enforcement is suspended by the Presidential Order.
2	Automatically suspends the fundamental rights under Article 19 as soon as the emergency is declared.	Does not automatically suspend any Fundamental Right. It only empowers the president to suspend the enforcement of the specified Fundamental Rights.
3	Operates only in case of External Emergency	Operates in case of both External Emergency as well as Internal Emergency.
4	Suspends Fundamental Rights under Article 19 for the entire duration of Emergency	Suspends the enforcement of Fundamental Rights for a period specified by the president which may either be the entire duration of Emergency or a shorter period.
5	Extends to the entire country	May extend to the entire country or a part of it.

EMERGENCY PROVISIONS

EFFECTS OF NATIONAL EMERGENCY

DISTINCTION BETWEEN ARTICLES 358 AND 359

S.NO	ARTICLE 358	ARTICLE 359
6	Suspends Article 19 completely	Does not empower the suspension of the enforcement of Articles 20 and 21.
7	Enables the State to make any law or take any executive action inconsistent with Fundamental Rights under Article 19	Enables the State to make any law or take any executive action inconsistent with those Fundamental Rights whose enforcement is suspended by the Presidential Order.

There is also a similarity between Article 358 and Article 359. Both provide immunity from challenge to only those laws which are related with the Emergency and not other laws. Also, the executive action taken only under such a law is protected by both.

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